FILED
2026 NOV 9 PM 3:48
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U.S. DISTRICT COURT

Aaron Booker
20 South Main Street, Unit 163
Bountiful, Utah 84011
Telephone: (385) 350-0517
Email: aaron.booker.litigation@gmail.com
Plaintiff Pro Se

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF UTAH, NORTHERN DIVISION

AARON BOOKER, Plaintiff, v. BRONSON KITCHEN, in his individual capacity, Defendant.	**FIRST AMENDED COMPLAINT AND JURY DEMAND** Case No. 1:26-cv-00221-DBP Magistrate Judge Dustin B. Pead

Plaintiff Aaron Booker, appearing pro se, alleges as follows against Defendant Bronson Kitchen. Allegations about Mr. Booker's own actions and observations are made on personal knowledge; all other allegations are made on information and belief.

NATURE OF THE ACTION

1. This is a civil-rights action under 42 U.S.C. § 1983 for violation of Mr. Booker's right under the Fourth Amendment to the United States Constitution, made applicable to the States by the Fourteenth Amendment, to be free from unreasonable seizure.

2. On May 21, 2026, Defendant Bronson Kitchen, a detective with the American Fork Police Department, stopped Mr. Booker on southbound Interstate 15 at Exit 317 in Davis County, Utah, because Detective Kitchen believed that the left-side lane serving Exit 317 was closed to drivers traveling without a passenger. It was not. Six days later, in a recorded telephone

call with his sergeant on the line, Detective Kitchen told Mr. Booker: "the initial reason for my stop was I was under the assumption that that was an HOV exit only lane . . . but after the fact, I have found out that that's incorrect. You are allowed to exit there."

3. The stop was not supported by objectively reasonable suspicion when it began. In the alternative, after Detective Kitchen told Mr. Booker he would not issue a ticket, Detective Kitchen kept Mr. Booker's documents and continued to detain him, not to complete any task of the stop, but because he wanted to talk to him.

4. This First Amended Complaint supersedes the original Complaint (ECF No. 1) in its entirety. It asserts claims only against Detective Kitchen, in his individual capacity.

JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3) because Mr. Booker's claims arise under the Constitution and laws of the United States.

6. Venue is proper in this District under 28 U.S.C. § 1391(b)(2) because the events giving rise to Mr. Booker's claims occurred in Davis County, Utah.

7. Davis County lies within the Northern Division of this District. See 28 U.S.C. § 125(1).

PARTIES

8. Plaintiff Aaron Booker is an adult who resides in Bountiful, Davis County, Utah. He is a military veteran who served in the United States Marine Corps.

9. Defendant Bronson Kitchen is, and at all relevant times was, a sworn police officer employed by the American Fork Police Department ("AFPD"), holding the rank of detective and assigned as a school resource officer. At all relevant times he acted under color of state law: he operated an AFPD police vehicle equipped with emergency lights, used those lights

and his authority as a police officer to stop and detain Mr. Booker, and documented the stop in an official AFPD incident report. He is sued in his individual capacity.

FACTUAL ALLEGATIONS

A. The Exit 317 Lane

10. On the afternoon of May 21, 2026, Mr. Booker was driving his gray 2019 Jeep Cherokee home on southbound Interstate 15 ("I-15") in Davis County, Utah. He was alone in the vehicle. He drives this route daily.

11. A forward-facing dashboard camera in Mr. Booker's Jeep recorded the drive. The camera also recorded audio inside the Jeep during the stop described below.

12. On this stretch of southbound I-15, the far-left lane is in places a marked express lane subject to the occupancy restrictions shown on posted signs (referred to here as the "HOV lane"). Where the restriction applies, a double white line separates the HOV lane from the general-purpose lanes.

13. Exit 317, to US-89 South and 500 West, leaves southbound I-15 on the left. Before the exit, the HOV restriction on the left lane is lifted so that drivers may move into that lane to take the exit. As Mr. Booker approached Exit 317, an overhead sign indicated, in substance, that the left lane had no restrictions for the next mile for traffic taking the left-side Exit 317, and the double white line separating the left lane changed to a broken line. From driving this route daily, Mr. Booker understands that the restriction ends in the vicinity of the Parrish Lane interchange (Exit 319).

14. Past the point where Exit 317 departs, the HOV restriction resumes for traffic continuing south, and a double line begins again to the right of the exit.

15. Mr. Booker moved into the left lane to take Exit 317 where the lane line was broken and the HOV restriction did not apply. He did not cross a double white line to enter the lane.

16. Detective Kitchen was driving an AFPD vehicle in the same traffic. Shortly before the exit, Detective Kitchen's vehicle was traveling to Mr. Booker's right. Mr. Booker passed Detective Kitchen's vehicle and then moved left into the exit lane ahead of it.

17. Detective Kitchen followed Mr. Booker onto the exit and activated his emergency lights. Mr. Booker pulled over and stopped on the shoulder of the Exit 317 ramp. AFPD's incident report for the stop lists the incident as occurring between 4:28 p.m. and 4:36 p.m.

B. The Stop

18. Detective Kitchen approached the Jeep on the passenger side. The front passenger window was partly open; Detective Kitchen's report describes it as rolled down approximately four inches.

19. Detective Kitchen told Mr. Booker to roll down the window. Mr. Booker answered, "No, it's fine," and told Detective Kitchen, "Give me my ticket."

20. Detective Kitchen then asked whether Mr. Booker wanted him to have "highway come and break this window." In his later report, Detective Kitchen described this as asking Mr. Booker "if he'd like me to call highway to come break the window," and wrote that "[t]hat escalated the situation." Mr. Booker understood "highway" to mean the Utah Highway Patrol.

21. Mr. Booker asked, "What am I being pulled over for?" Detective Kitchen answered: "because you just went into the carpool lane and you are a single lane driver."

22. Mr. Booker, by then angry, responded with profanity and demanded that Detective Kitchen either give him a ticket or leave. He told Detective Kitchen, "This is an exit lane, sir. The carpool lane ends a long time ago," and said that Detective Kitchen was upset because Mr. Booker had passed him.

23. Detective Kitchen replied that it was not "an exit lane for single drivers." Mr. Booker answered: "It absolutely is. The carpool lane ends back there by Parrish Lane. I drive this every day."

24. At no point during the stop did Detective Kitchen say that Mr. Booker had been speeding, following too closely, or changing lanes unsafely, or that Mr. Booker had crossed a double white line.

25. Mr. Booker, still swearing, handed Detective Kitchen his vehicle registration, his insurance card, and—by mistake—his military identification card. Realizing the mistake, he said, "Wrong ID. Here, this one," and offered his driver license.

26. Mr. Booker then stated three times that he was invoking his right to remain silent. Detective Kitchen told Mr. Booker: "I'm not going to give you a ticket." Mr. Booker continued, with profanity, to demand a ticket, and told Detective Kitchen that the encounter would be posted on YouTube.

27. Detective Kitchen declined to take Mr. Booker's driver license, telling him he was not taking it. When Mr. Booker demanded the return of his documents, Detective Kitchen said: "I'm just trying to talk to you for a moment."

28. Detective Kitchen kept Mr. Booker's registration, insurance card, and military identification card. He began, "Sir, what I was going to tell you," and Mr. Booker said he did not want to hear it and again demanded his ticket. Detective Kitchen said again, "I'm not giving you a ticket." Mr. Booker demanded his documents back.

29. Mr. Booker then said, "let me calm down," and asked, "Am I detained?" Detective Kitchen answered, "Yes."

30. Mr. Booker responded, "Then go write my ticket," and instructed Detective Kitchen to return his military identification card. Mr. Booker then handed over his Utah driver's license and stated: "Go write my ticket, or give me a warning, or do what you have to do."

31. Detective Kitchen continued to hold Mr. Booker's documents while Mr. Booker continued, with profanity, to demand either his ticket or his documents so that he could leave, and while Mr. Booker again invoked his right to remain silent.

32. Detective Kitchen then said he was "[g]iving your stuff back," returned the documents, and ended the stop. He did not issue a citation.

33. In his report, Detective Kitchen wrote that, after seeing Mr. Booker's military identification, he tried to tell Mr. Booker that he "appreciated his service," and that he told Mr. Booker he "had no intention of giving him a ticket and just wanted to warn him about improperly entering the HOV lane." The report states that Detective Kitchen gave Mr. Booker "a verbal warning."

34. After Detective Kitchen said he would not issue a ticket, he did not tell Mr. Booker that he needed to check any record, complete any paperwork, or perform any other task before Mr. Booker could leave. The substance of the warning he describes—that Mr. Booker should not have entered the left lane—was what Detective Kitchen had already told Mr. Booker when explaining the reason for the stop, and Mr. Booker had already disputed it.

35. Mr. Booker was not arrested, cited, or charged with any offense.

C. Detective Kitchen's Recorded Admissions

36. On May 22, 2026, the day after the stop, Mr. Booker submitted a request to American Fork City under Utah's Government Records Access and Management Act ("GRAMA") for records of the stop and complained to AFPD about Detective Kitchen's conduct. Mr. Booker's recording of the stop was posted publicly on YouTube.

37. On May 27, 2026, AFPD's Chief of Police telephoned Mr. Booker, apologized for the incident, and told Mr. Booker that the officer would be disciplined.

38. Later that day, AFPD Sergeant Stowers and Detective Kitchen called Mr. Booker together. Mr. Booker recorded the call. Sergeant Stowers said that he was there with Detective Kitchen and handed the phone to him.

39. Detective Kitchen told Mr. Booker:

> "So, the initial reason for my stop was I was under the assumption that that was an HOV exit only lane. Um which I did explain to you, but after the fact, I have found out that that's incorrect. You are allowed to exit there. So, I do want to apologize to you for stopping you there. I'm not above admitting that I don't know everything. I didn't know that that was you know, an exit as well lane. So, I do apologize for the initial stop."

40. Detective Kitchen also said: "when I got to your window and and told you to put the window down, you told me no. I shouldn't have told you that I was going to have your window broken by another agency and let myself get amped up." Later in the call he said: "I do believe that if I hadn't let myself get amped up about the window that our interaction would have gone completely differently." Mr. Booker, for his part, apologized during the call for his own language at the stop.

41. During the call, Detective Kitchen did not say that he had stopped Mr. Booker for speeding, following too closely, or changing lanes unsafely, or that Mr. Booker had crossed a double white line. The only reason he gave for the stop was his assumption that the lane was an HOV exit-only lane.

D. The June 3 Incident Report

42. Detective Kitchen completed his written report of the stop, AFPD Incident Report No. 26AF04748, on June 3, 2026—thirteen days after the stop, and after Mr. Booker's May 22 records request and complaint, the public posting of the video, and the May 27 calls. AFPD released the report to Mr. Booker on June 4, 2026, in response to his GRAMA request.

43. The report states:

> "On 5/21/26 shortly after entering the freeway I saw a dark Jeep in my rear view mirrors that was aggressively switching lanes, following too closely to vehicles in front of him and speeding. Just prior to exit 317 the Jeep entered the HOV lane to exit. I thought the Jeep entered the HOV lane while there was still a double white line so I intiated [sic] a traffic stop."

44. The report's account differs from Detective Kitchen's earlier statements in specific ways:

(a) At the roadside, Detective Kitchen told Mr. Booker that the problem was that he had gone into the carpool lane as a single driver and that the lane was not "an exit lane for single drivers." On May 27, he said that the initial reason for the stop was his assumption that the lane was "an HOV exit only lane." The report instead says

that he stopped Mr. Booker because he "thought the Jeep entered the HOV lane while there was still a double white line."

(b) The report's statements that Mr. Booker was "aggressively switching lanes, following too closely to vehicles in front of him and speeding" do not appear in anything Detective Kitchen said during the stop or on the May 27 call. The report does not identify any speed, any following distance, or any particular lane change.

(c) Even in the report, Detective Kitchen does not say that he stopped Mr. Booker for speeding, following too closely, or changing lanes; he says that he initiated the stop because of his belief about the HOV lane, and that the warning he wanted to give concerned "improperly entering the HOV lane."

(d) The report does not mention that Detective Kitchen told Mr. Booker he was detained, or that Detective Kitchen told Mr. Booker he was "just trying to talk to [him] for a moment."

E. Injury

45. As a result of the stop and its continuation, Mr. Booker was deprived of his liberty and freedom of movement, was held at the side of a freeway exit ramp, was deprived for a time of possession of his registration, insurance card, military identification card, and driver's license and suffered frustration, anger, humiliation, and emotional distress.

COUNT I
Unreasonable Seizure — Stop Without Reasonable Suspicion
(42 U.S.C. § 1983; Fourth and Fourteenth Amendments)
(Against Defendant Kitchen in His Individual Capacity)

46. Mr. Booker incorporates paragraphs 1 through 45 as if fully set forth here.

47. Detective Kitchen seized Mr. Booker within the meaning of the Fourth Amendment when he used his emergency lights to stop Mr. Booker's Jeep and detained him at the roadside.

48. A traffic stop is reasonable at its inception only if the officer has an objectively reasonable suspicion that the driver has violated a traffic law or is engaged in other unlawful activity. An officer's mistake of fact or law can support a stop only if the mistake is objectively reasonable. *Heien v. North Carolina*, 574 U.S. 54, 61, 66 (2014).

49. The basis on which Detective Kitchen stopped Mr. Booker—his belief that the left lane at Exit 317 was closed to single-occupant vehicles, or that Mr. Booker had entered it across a double white line—was false. The lane was open to Mr. Booker, and he entered it where the restriction had been lifted. As Detective Kitchen later acknowledged, "You are allowed to exit there."

50. Detective Kitchen's mistake was not objectively reasonable. A reasonable officer in his position, traveling the same stretch of highway in the same traffic, could see the overhead signage indicating no left-lane restrictions for the mile before the left-side Exit 317 and the broken lane line permitting vehicles to move into the exit lane. Detective Kitchen's later explanation was not that the signage or markings were unclear, but that he "didn't know" the lane was "an exit as well lane."

51. At the roadside and on May 27, Detective Kitchen identified only the supposed HOV violation as the basis for the stop. His later report likewise states that he initiated the stop because of his belief about the HOV lane, and it identifies no specific facts—no speed, following distance, or particular lane change—supporting its general assertions about Mr. Booker's driving. On information and belief, before initiating the stop Detective Kitchen did not observe specific, articulable facts that would have given a reasonable officer reasonable suspicion that Mr. Booker had committed any other traffic violation.

52. Detective Kitchen therefore seized Mr. Booker without reasonable suspicion or probable cause, in violation of the Fourth Amendment.

53. Detective Kitchen acted with reckless or callous indifference to Mr. Booker's federally protected rights, including by stopping Mr. Booker without verifying the basis he

asserted and by threatening, at the outset of the stop, to have another agency break Mr. Booker's window.

54. As a direct and proximate result, Mr. Booker suffered the injuries described in paragraph 45 and is entitled to compensatory damages or, at a minimum, nominal damages, and to punitive damages.

COUNT II
Unreasonable Seizure — Unreasonably Prolonged Detention
(Pleaded in the Alternative to Count I)
(42 U.S.C. § 1983; Fourth and Fourteenth Amendments)
(Against Defendant Kitchen in His Individual Capacity)

55. Mr. Booker incorporates paragraphs 1 through 45 as if fully set forth here.

56. This Count is pleaded in the alternative to Count I under Federal Rule of Civil Procedure 8(d)(2). Even if the stop was lawful when it began, Detective Kitchen unreasonably prolonged it.

57. A seizure justified only by a traffic violation becomes unlawful if it is prolonged beyond the time reasonably required to complete the mission of the stop, which is to address the traffic violation that warranted the stop and attend to related safety concerns. Authority for the seizure ends when tasks tied to the traffic infraction are, or reasonably should have been, completed. *Rodriguez v. United States*, 575 U.S. 348, 354 (2015).

58. By the time Detective Kitchen told Mr. Booker, "I'm not going to give you a ticket," he had (a) told Mr. Booker the reason for the stop and that, in his view, the lane was not open to single drivers; (b) heard and rejected Mr. Booker's response; (c) received Mr. Booker's registration, insurance card, military identification card, and driver's license identifying him; and (d) decided not to issue a citation.

59. From that point, no task tied to the asserted HOV infraction remained that required Mr. Booker's continued detention. Detective Kitchen did not tell Mr. Booker that any records check or other task was pending. His report identifies no outstanding records check or other unfinished administrative task during these additional exchanges.

60. Detective Kitchen nonetheless continued to detain Mr. Booker and to keep his documents. He told Mr. Booker, "I'm just trying to talk to you for a moment," and when Mr. Booker asked whether he was detained, he answered, "Yes." According to his own report, what Detective Kitchen wanted to tell Mr. Booker was that he appreciated Mr. Booker's service and to warn him about the HOV lane—a point Detective Kitchen had already made and Mr. Booker had already disputed.

61. Thanking Mr. Booker for his military service was not part of the mission of the traffic stop, and repeating to an unwilling listener a warning whose substance had already been delivered was not a task reasonably required to complete it. Holding Mr. Booker's documents until he would listen added time to the stop: Mr. Booker remained detained through multiple further exchanges after Detective Kitchen announced that he would not issue a ticket, and he was released when Detective Kitchen returned the documents. Detective Kitchen's report reflects no further task completed in the interval.

62. Nothing that occurred during the stop gave Detective Kitchen reasonable suspicion of any other offense, and Detective Kitchen did not purport to investigate any other offense.

63. Detective Kitchen therefore unreasonably prolonged the seizure of Mr. Booker, in violation of the Fourth Amendment.

64. Detective Kitchen acted with reckless or callous indifference to Mr. Booker's federally protected rights by deliberately keeping Mr. Booker's documents and detaining him, after deciding not to issue a ticket, so that Mr. Booker would listen to him.

65. As a direct and proximate result, Mr. Booker suffered the injuries described in paragraph 45 and is entitled to compensatory damages or, at a minimum, nominal damages, and to punitive damages.

PRAYER FOR RELIEF

WHEREFORE, Mr. Booker requests that the Court enter judgment in his favor and against Defendant Bronson Kitchen and award:

A. Compensatory damages in an amount to be determined at trial;

B. Nominal damages;

C. Punitive damages in an amount to be determined at trial;

D. Costs of suit as allowed by law;

E. Pre-judgment and post-judgment interest as allowed by law; and

F. Such other relief as the Court deems just and proper.

JURY DEMAND

Under Federal Rule of Civil Procedure 38(b), Mr. Booker demands a trial by jury on all issues so triable.

DATED: this 9th day of November, 2026.

/s/ Aaron Booker

Aaron Booker
Plaintiff Pro Se
20 South Main Street, Unit 163
Bountiful, Utah 84011
Telephone: (385) 350-0517
Email: aaron.booker.litigation@gmail.com